

**BEFORE THE BEHAVIORAL HEALTH PROFESSIONALS BOARD
OF THE STATE OF IOWA**

IN THE MATTER OF: ANNIE VAUGHN RESPONDENT.	CASE NOs.: 22-0230, 23-0092, 25-0281 DIAL NO.: 26DBBH0004 NOTICE OF HEARING AND STATEMENT OF CHARGES
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COMES NOW the Iowa Board of Behavioral Health Professionals (“Board”) and files this Notice of Hearing and Statement of Charges against Annie Vaughn (“Respondent”), pursuant to Iowa Code sections 17A.12(2), 17A.18(3), 154C, and 272C.3(1)(e), and Iowa Administrative Code rule 481-506.5.

A. TIME, PLACE AND NATURE OF HEARING

1. **Hearing.** A contested case hearing shall be held virtually starting at 9:00 a.m. CT on December 15, 2025. The link to participate virtually is www.meet.google.com/ksa-ewcc-ehi or you may dial 240-407-7955 (PIN# 632 173 869). You must be able to utilize the video-function and be on camera for the duration of the hearing. This case has been delegated to the Administrative Hearings Division. If you have trouble connecting, you may call 515-281-6468 or email adminhearings@dia.iowa.gov. If you wish to request that this matter be converted to an in-person hearing, you may make this request at the earliest opportunity by contacting the Administrative Hearings Division at adminhearings@dia.iowa.gov.

2. **Answer.** Within twenty (20) days of the date you are served this Notice of Hearing and Statement of Charges, you may file an Answer. In that Answer, you should also state whether you will request a continuance of the date and time of the hearing.

3. **Filing of Pleadings.** Pleadings shall be filed with the Board at the following address:

Board of Behavioral Health Professionals, 6200 Park Avenue, Ste. 100, Des Moines, Iowa 50321, or may be submitted by email to Tony Alden at tony.alden@dia.iowa.gov, or submitted electronically using the Administrative Electronic Document Management System (<https://adminhearings.iowa.gov/efile/>).

4. **Presiding Officer.** The Board voted unanimously to delegate this matter to the Administrative Law Judge from the Administrative Hearings Division of the Department of Inspections, Appeals and Licensing, to hear this disciplinary matter as well as any pre-hearing matter which may be filed by the parties. The Administrative Law Judge shall serve as presiding officer at the contested case hearing, as well as make initial rulings on prehearing matters.

5. **Prehearing Conference.** Any party may request a prehearing conference to discuss evidentiary issues related to the hearing in accordance with Iowa Administrative Code rule 401-506.17.

6. **Hearing Procedures.** The procedural rules governing the conduct of the hearing are found at Iowa Administrative Code rule 481-506.19. At the hearing, you may appear personally or be represented by legal counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at hearing. If you need to request an alternative time or date for hearing, you must comply with the requirements of Iowa Administrative Code Rule 481-506.18. The hearing may be open to the public or closed to the public at the discretion of the Respondent.

7. **Witness and Exhibits.** The Witness and Exhibit list must be filed and exchanged at least five (5) days prior to the hearing date.

8. **Prosecution.** The Office of the Attorney General is responsible for representing the public

interest (the State) in this proceeding. Pleadings shall be filed with the Board and copies should be provided to counsel for the State at the following address: Samantha Wagner, Assistant Attorney General, 1305 E. Walnut St., Des Moines, IA 50319.

9. **Communications.** You may not contact Board members in any manner, including by phone, letter, facsimile, in person or e-mail, about this Notice of Hearing and Statement of Charges. Board members may only receive information about the case when all parties have notice and an opportunity to participate, such as at the hearing or in pleadings you file with the Board and serve upon all parties in the case. You may contact Tony Alden, Board Executive, Iowa Board of Behavioral Health Professionals, at 515-281-4401 or tony.alden@dia.iowa.gov, or Assistant Attorney General Samantha Wagner at 515-281-3395 or by email at samantha.wagner@ag.iowa.gov.

B. LEGAL AUTHORITY AND JURISDICTION

10. **Iowa License.** Respondent was issued Iowa mental health counselor license number 081712 on July 19, 2018. Respondent's license is inactive and expired on September 30, 2024.

11. **Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code chapters 154D, 147, and 272C.¹

12. **Legal Authority.** If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapter 154D and 481 Iowa Administrative Code chapter 882 (previously found at 645 Iowa Administrative Code chapter 33).

13. **Default.** The Board may enter a default decision or proceed with the hearing and render a

¹ The Board of Behavioral Science merged into the Board of Behavioral Health Professionals and now oversees additional behavioral health professionals (beyond the marital and family therapists, mental health counselors, and behavior analysts previously governed by the Board). The previous Board of Behavioral Science's disciplinary chapter was found at 645 Iowa Administrative Code chapter 33.

decision in your absence, in accordance with Iowa Code Section 17A.12(3) and Iowa Administrative Code rule 481-506.21.

C. STATEMENT OF CHARGES²

COUNTS I & II

14. Respondent is charged under Iowa Administrative Code rule 645-33.2(1)³ with two counts of failure to comply with the current Code of Ethics of the American Counseling Association (ACA), specifically for violating rule A.5.e (Personal Virtual Relationships with Current Clients), which prohibits counselors from engaging in personal virtual relationships with current clients through social media.

COUNT III

15. Respondent is charged under Iowa Administrative Code rule 645-33.2(1)⁴ with failure to comply with the current Code of Ethics ACA, specifically for violating rule B.1.c. (Respect for Confidentiality), which requires counselors to protect the confidential information of prospective and current clients, and states that counselors disclose information only with appropriate consent or with sound legal or ethical justification.

COUNT IV

16. Respondent is charged under Iowa Administrative Code rule 645-33.2(1)⁵ with failure to comply with the current Code of Ethics of the ACA, specifically for violating rule B.6.e. (Client

2 Respondent's conduct occurred prior to the adoption of the disciplinary rules at 481 Iowa Administrative Code chapters 504 and 882 by the Board of Behavioral Health Professionals. Accordingly, Respondent is charged under the previous rules enforced by the Board of Behavioral Science at the time her conduct occurred, which are found at 645 Iowa Administrative Code chapter 33. All other references governing this proceeding can be located at Iowa Administrative Code r. 481-500 *et seq.*

3 As of August 13, 2025, this rule has been renumbered to Iowa Administrative Code rule 481-882.1(1).

4 As of August 13, 2025, this rule has been renumbered to Iowa Administrative Code rule 481-882.1(1).

5 As of August 13, 2025, this rule has been renumbered to Iowa Administrative Code rule 481-882.1(1).

Access), which requires counselors to provide reasonable access to records and copies of records upon request from clients.

COUNT V

17. Respondent is charged under Iowa Administrative Code rule 645-33.2(29)⁶ with engaging in unethical conduct.

COUNT VI

18. Respondent is charged under Iowa Administrative Code rule 645-33.2(1)⁷ with failure to comply with the current Code of Ethics of the ACA, specifically for violating rule A.11.c. (Appropriate Termination).

D. STATEMENT OF THE MATTERS ASSERTED

19. **Practice Setting**. Respondent practiced mental health counseling in Davenport, Iowa, during the time period relevant to these allegations. Respondent currently lives in the state of Illinois.

20. **Allegations**. A short and plain Statement of the Matters Asserted (Statement) was reviewed and approved by the Board at the time this Notice of Hearing and Statement of Charges was filed. The Statement shall be furnished to Respondent as an attachment to this Notice of Hearing and Statement of Charges. However, the Statement is not a public record pursuant to Iowa Code section 272C.6(4)(a).

E. SETTLEMENT

21. This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at Iowa Administrative Code rule 481-506.35. If you are

⁶ As of August 13, 2025, this rule has been renumbered to Iowa Administrative Code rule 481-504.2(27).

⁷ As of August 13, 2025, this rule has been renumbered to Iowa Administrative Code rule 481-882.1(1).

interested in pursuing settlement of this matter, please contact the Assistant Attorney General identified above.

F. PROBABLE CAUSE FINDING

22. On September 2, 2025, the Iowa Board of Behavioral Health Professionals found probable cause to file this Notice of Hearing and Statement of Charges.

Dated this 2nd day of September, 2025.



Aaron Culley, Chairperson
Iowa Board of Behavioral Health Professionals

Copies to:
Assistant Attorney General Samantha Wagner
Department of Inspections, Appeals, and Licensing, assigned Administrative Law Judge

PLEASE NOTE: If you require the assistance of auxiliary aids or services to participate in this matter because of a disability, immediately call 515-281-0233. (If you are hearing impaired, call Relay Iowa TTY at 1-800-735-2942).